

In T.210/93 the originally claimed process for the production of a rubber product was held not to be novel by the examining division because the claimed temperature range was already disclosed in D1. With reference to G.2/88 and G.6/88, the applicants thereupon claimed the use of this known process for the purpose of preparing the rubber product having a certain maximum ratio of constituent X. They argued that in the absence of a disclosure of this mole ratio in D1, this constituted a "specific technical purpose of achieving the previously unknown chemical structural arrangement". The board observed that decisions G.2/88 and G.6/88 related to claims to the use of a known compound for a particular purpose, in contrast to the appellants' claim, which was directed to the use of a known process for a particular purpose, the purpose being the preparation of a particular product naturally resulting from such process. In the board's view, the **use of a process for the purpose of preparing its product(s)** could be said to be nothing but that very same process, and the scope of protection appeared to be the same for a claim to the process as such and a claim to such use (confirmed in T.684/02 and T.2215/08).

In T.684/02 the board noted that claim 1 was directed to the use of the fluorination reaction process in order to remove the unstable end groups from the starting polymer. The effect of this process manifested itself in its result, i.e. in the product together with all its internal characteristics and the consequences of its particular history of origin (see T.119/82; OJ 1984, 217) but not in an effect observed in a particular use of the product. Moreover, in the board's view, a claim to the use of a process or to the process itself addressed the producer of a product, irrespective of any conceivable later applications, methods of further processing or uses of the product, whilst a claim to the use of a product clearly addressed the customer/user of that product. In other words, the asserted advantage or purpose could not be taken into account as a functional technical feature in claim 1 because of the jurisprudence of the boards of appeal as well as for technical reasons, because the asserted advantage or purpose was related only to the product (manufactured in some process or other) when used in certain circumstances and marginal conditions.

In T.1039/09 the physical steps of the claimed method were the same as in the prior art. However it was submitted that the purpose of the method, namely producing bovine milk having a reduced level of saturated fatty acids relative to the level of unsaturated fatty acids, was also a technical feature to be taken into account in the assessment of the novelty of claim 1. The board stated that the claim at issue related to a known method for a particular purpose, namely the production of a product, wherein the product is the necessary result of the known method and indistinguishable from the product obtained in the prior art. The question arose whether the purpose could be considered a functional technical feature of a claim directed to a process for producing a product characterised by process steps wherein the purpose of carrying out said process steps was indicated in the claim. In the board's judgment the skilled person would not in the present case use the process for any purpose other than the production of its inevitable product, namely milk containing only beta-casein having a proline at position 67 and therefore also having a reduced level of saturated fatty acids relative to the level of unsaturated fatty acids. The board concluded that the relevant technical features for the purpose of assessment of the novelty of the method of claim 1 were its physical steps and that document (D3), which disclosed these physical steps, anticipated the subject-matter of claim 1 of the main request.

In T.1822/12 the appellant submitted that the prior art did not disclose the purpose of the method steps, which was defined in claim 1 as "a method for reducing acrylamide formation in thermally processed foods", or the step of "cooking said food to form a cooked food with a reduced concentration of acrylamide". According to the appellant, the above purpose and step were features limiting the scope of claim 1 and distinguishing it from the disclosures in the prior art. With regard to the above purpose, the appellant submitted that the principles established by G 2/88 and G 6/88 concerning limiting functional features of a claim should apply equally to the method claim in question. The board, however, stated that G 2/88 related only to a use claim, namely to a claim for the new use of a known compound. It concluded that claim 1 of the main request relating to the known method of thermally processing foods for the unknown purpose of reducing acrylamide formation could not be construed to include that purpose as a distinguishing functional technical feature.

e) Discovery of new properties/technical effects underlying the known use

In T. 958/90 the board mentioned that a known effect could not be novel for the sole reason that the patent provided the information that it was present to a hitherto unknown extent.

In T.279/93 a claim directed to the use of a first compound in a process for preparing a second compound was revoked by the opposition division for lack of novelty. In particular, the claims were directed to the use of the alkanolamines for reducing the formation of isomelamine impurities. According to the appellant, this purpose, even if it might have been inherently attained by following the teaching of a prior art document, should have rendered the subject matter of the claims novel, since, in application of the reasoning in decision G 2/88 (OJ 1990, 93), inherency did not destroy the novelty of the new use, which had to be regarded as a functional technical feature of the claims. In the board's judgment, the use of a compound in a process for preparing another compound in order to reduce the formation of impurities was not necessarily a functional technical feature within the meaning of decision G 2/88, and did not therefore in all circumstances confer novelty on the subject matter of a claim containing it. The facts of the case at issue differed significantly from those underlying decision G 2/88, since the claim did not appear to contain any new technical effect or technical purpose in the sense required by that decision. In the board's view, noticing that an old product had the property of containing fewer isomelamine impurities was a mere discovery. To convert this into a patentable invention, and to show the characteristics of a new technical effect, the use referred to in the claim would have to be some **new use of the product** which exploited the discovery that the isomelamine impurities were low for some new technical purpose.

In T.1855/06, the board held that novelty of a use of a known compound for the known production of a known product could not be deduced from a new property of that product. In such a case, the use of a compound to produce a product had to be interpreted as a process for producing the product with the compound and could be regarded as novel only if the production process as such was novel. Similarly, where its stated purpose was merely to improve an already known property of the product to be produced, the use could not be regarded as a new technical activity within the meaning of G 2/88 and G 6/88, unless the claim required that the improvement be exploited in some form. In line with

T. 279/93, the board held that a finding that a known product had a particular property was a mere discovery and could not establish novelty of a use claim.

In T. 892/94 (OJ 2000, 1) the board noted that according to G. 2/88, novelty within the meaning of Art. 54(1) EPC 1973 could be acknowledged for a claim directed to the use of a known substance for a hitherto unknown, i.e. new, non-medical purpose reflecting a newly discovered technical effect. However, a newly discovered technical effect did not confer novelty on a claim directed to the use of a known substance for a known non-medical purpose if the newly discovered technical effect **already underlay the known use of the known substance**. The disclosure in citation (1) was, in the board's judgment, prejudicial to the novelty of the claim in question. It was immaterial for the purposes of prejudice to novelty that the actual technical effect exhibited by "aromatic esters" in deodorising compositions was not described in the cited document. The ex post facto discovery that the deodorising effect of "aromatic esters" when used as an active ingredient in deodorising products could result from their capability of inhibiting esterase-producing micro-organisms might possibly be regarded as a (potentially surprising) piece of knowledge about the known use or application of such esters but could not confer novelty on a claim, since the latter would require that the newly discovered effect did indeed result in either a new technical application or use of the "aromatic esters", which was not necessarily correlated with the known application or use and could be clearly distinguished therefrom.

In T. 706/95 the board held that the discovery that the **same known means** led to an additional effect when they are used for the **same known purpose** (i.e. known use) of reducing the concentration of nitrogen oxides in the same effluent could not confer novelty on this known use (see also T. 934/04).

In T. 189/95 the board ruled that a new property of a substance, i.e. a new technical effect, did not necessarily signal or give rise to a new use for that substance. For example, the new property might **merely explain the mechanism behind the use already described in the prior art**, as in T. 892/94 (OJ 2000, 1). Here again the board ruled that discovering a new property or activity did not in itself render novel a claim for the use of a known substance for a known non-medical use, if the discovery only showed what formed the basis of the known use of the known substance.

In T. 151/13 the board stated that the purpose of a particular reagent in a known chemical process is not a functional technical feature in the sense of G. 2/88 and does not render said process novel.

On the issue of the discovery of a previously unknown property of a compound underlying a known use, see further T. 1073/96, referring to T. 254/93 (OJ 1998, 285). By contrast, it was found that there was a new use, e.g. in T. 319/98, T. 952/99, T. 966/00, T. 326/02 and T. 1090/02.

- f) Use of a substance to achieve a technical effect only attained in special circumstances

In T 977/02 the claim in suit was directed not to a device per se but to use of a specific component (an electric machine carcase) to attain a technical effect (to facilitate the recycling of the electric machine). Applying G 2/88 and G 6/88 (OJ 1990, 93 and 114), the board held that a claim to the use of a component having a specific property (material that can be crushed into fragments) for a specific purpose (to facilitate the recycling of an electric machine) stated in the said claim and based on a technical effect described in the patent (flow of the material that can be crushed into fragments through the turns of the winding during recycling) should be interpreted as comprising a functional technical feature by virtue of that technical effect. According to the board, this was still valid when, as in the case before it, the technical effect was attained only in special circumstances (when the electric machine was recycled). The board also held that the choice of the specific material for manufacture of the carcase covered by the use defined by the claim in suit constituted a novel selection.

8.1.4 Statement of purpose in non-medical use claims in view of Article 52(4) EPC 1973

In T 36/83 (OJ 1986, 295) the board stated that having discovered for the first time the surprising properties of a chemical product already known in the state of the art and having shown those properties in various uses, the applicant had the right to have those uses protected. In the particular case the uses were presented in the description as two methods; a method of medical treatment and a method of non-medical treatment. Under Art. 52(4) EPC 1973 a method of medical treatment was not patentable but a product for use in that method certainly was. Claims 1 to 7 had been worded accordingly. The method of non-medical treatment was one falling within the general field of patentable inventions. There could be no objection to the patentability of either use or method claims in general (see G 5/83, OJ 1985, 64). The applicants had chosen the phrase **"use as a cosmetic product of thenoyl peroxide"**. The board considered that this form of claim was **acceptable** in the case in suit. The board noted that when considering the exclusions from patentability under Art. 52(4) EPC 1973 the wording of the claim was important. In reaching this conclusion the board held the use of the word "cosmetic" in the context of that application to be sufficiently precise to exclude therapeutic uses, without the need for a specific disclaimer of such uses.

8.1.5 Novelty criteria for product claims with purpose characteristics

It is long standing office practice that a formulation such as "apparatus for" is to be interpreted as meaning an apparatus which is suitable for the stated use, see for example Guidelines F-IV, 4.13 – March 2022 version; T 1389/10). As explained in the Guidelines, as e.g. in the case of a mould for molten steel, the stated use may imply certain physical limitations (size, material) without which the apparatus could not be used for that purpose. Any prior art apparatus which, in addition to features expressly mentioned in the claim also possesses these implicit physical features and can thus reasonably be used for the stated purpose will then take away novelty of the claimed apparatus. This is irrespective of whether or not the prior art mentions the stated use or purpose or whether the stated use

is obvious or not. This is because the claim is directed at the apparatus, not its use. Nor can stating a use that is new and not-obvious render an apparatus which is already known novel and inventive.

In T.215/84 the board held that the discovery that the known equipment might be used in a new manner could not render the entity itself novel.

In T.523/89 a particular prior art document disclosed a container having all the structural features defined in claim 1 of the contested patent. Hence, the only outstanding issue was the fact that D1 nowhere indicated that the container disclosed therein was intended to be used for ice-cream. The board noted that the question of anticipation of a claim to an article for a particular use was dealt with in the Guidelines (Guidelines F-IV, 4.13 – version 2022), from which it was clear that, with the exception of medical uses of known substances, the indication of intended use was only to be seen as **limiting to the extent that the article had to be suitable for that use**. In other words, disclosure of an equivalent article without an indication of the particular use claimed – although the article was nevertheless suitable for it – would cause lack of novelty of a claim to the article for that particular use. The board saw no reason to disagree with this general principle of interpretation laid down in the Guidelines.

In T.15/91 the board ruled that, according to the case law of the boards of appeal, the discovery that known apparatus could be used in a manner not hitherto described did not substantiate the novelty of that apparatus, if the hitherto unknown use did not require any modification to the technical design of the known apparatus (see T.523/89).

In decisions T.303/90 and T.401/90 the main claims related to a contraceptive composition comprising known pharmaceutical compounds. The board was of the opinion that the composition as claimed could not be considered novel and the added word "contraceptive" did not change the product claim into a use claim. **Only in the case of first medical use** could the addition of a purpose characteristic render a product claim new, if the product as such was known in other technical fields (see also T.1200/03).

In T.637/92 the board held that, according to established case law, the statement of purpose of a claimed device (or product) was to be interpreted as meaning that the device was **suitable for the stated purpose** and that a known device that served another purpose but otherwise possessed all the features listed in the patent claim was not prejudicial to the novelty of the subject-matter of the claim if the known device was unsuitable for the purpose referred to in the claim (see also T.287/86). In the case in question, however, these conditions had not been met since the device known from the citation did not possess one of the features of claim 1.

In T.116/14 the board held that a device's suitability for its stated purpose had to arise from the interaction of its claimed features alone. It could not depend on features not claimed, even if they were not excluded because the claim's wording was open-ended – for example because it used expressions such as "comprising" and "containing". Otherwise, the claim would lack clarity. This meant a citation could be considered to disclose a feature worded using an indication of purpose ("purpose feature") only if the interaction of the